

1. Line 8 through 13:

- 8 →defines terms;
- 9 →expands the nonrefundable corporate and individual income tax credit for
- 10 employer-provided child care to apply to off-site child care facilities;
- 11 → H→ disqualifies an employer from receiving the tax credit if the employer charges or
- 11a deducts pay from employees for child care services; ←H
- 11b →increases the tax credit amount for certain small business employers, in relation to the
- 12 employer's child care expenditures;
- 13 →repeals the requirement for an employer to have claimed the tax credit for construction

2. Line 63 through 71:

- 63 (ii) with respect to which the employer is allowed a deduction for depreciation, or
- 64 amortization in lieu of depreciation.
- 65 [(d)](g) "Qualifying taxpayer" means a taxpayer that:
- 66 (i) is an employer; H→ and ←H
- 67 (ii) qualifies for and claims the federal employer-provided child care tax credit
- 68 described in Section 45F, Internal Revenue Code, for the current taxable year H→ :
- 68a ; and
- 68b (iii) does not obtain payment from an employee or deduct from an employee's
- 68c salary or wages for child care services, with respect to any qualified child care
- 68d facility for which the taxpayer claims a tax credit under this section. ←H
- 69 [(e)](h) "Recapture event" means an employer fails to operate [a]an on-site qualified
- 70 child care facility for which the employer claims a tax credit under [this section]
- 71 Subsection (2) as a child care facility for at least five consecutive taxable years after

3. Line 126 through 134:

- 126 [(e)](d) "Qualified construction expenditure" means the same as that term is defined in
- 127 Section 59-7-627.
- 128 [(d)](e) "Qualifying claimant" means a claimant, estate, or trust that:
- 129 (i) is an employer; H→ and ←H
- 130 (ii) qualifies for and claims the federal employer-provided child care tax credit
- 131 described in Section 45F, Internal Revenue Code, for the current taxable year H→ :

131a ; and
131b (iii) does not obtain payment from an employee or deduct from an employee's
131c salary or wages for child care services, with respect to any qualified child care
131d facility for which the claimant, estate, or trust claims a tax credit under this section. ←H
132 [(e)](f) "Recapture event" means the same as that term is defined in Section 59-7-627.
133 [(f)](g) "Third party provider" means the same as that term is defined in Section
134 59-7-627.